Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

RESOLUTION NO. 156

RESOLUTION REQUESTING THE SENATE OF THE PHILIPPINES TO PRIORITIZE THE COMPENSATION BILL FOR MARAWI

WHEREAS, Section 11, Article II of the 1987 Constitution provides that the State values the dignity of every human person and guarantees full respect for human rights;

WHEREAS, Section 7, Article IV of R.A. 11054 or the Bangsamoro Organic Law (BOL) provides that the Bangsamoro Government shall ensure every Filipino citizen in its territorial jurisdiction the provision of basic necessities and equal opportunities in life. Social justice shall be promoted in all aspects of life and phases of development in the Bangsamoro Autonomous Region;

WHEREAS, House Bill 9925 otherwise known as the proposed Marawi Compensation Act (An Act Providing Monetary Compensation to Qualified Claimants, through the Task Force Bangon Marawi, for the Loss or Destruction of Residential and Commercial Properties as a Result of the 2017 Armed Conflict Between the Armed Forces of the Philippines and Terrorist Groups in Marawi City, Lanao Del Sur, and Appropriating Funds therefor) was approved on third and final reading by the House of Representatives on September 6, 2021;

WHEREAS, the bill seeks to provide compensation to qualified claimants who are the lawful owners or possessors who have become internally displaced persons (IDP) as a result of the 2017 armed-conflict between the Armed Forces of the Philippines and terrorist groups in Marawi City;

WHEREAS, the bill proposes to institutionalize the Task Force Bangon Marawi (TFBM) to attain objectives set in Marawi Recovery, Rehabilitation and Reconstruction Program (MRRP), as well as to provide compensation to those who lost their homes and other properties to the siege;

WHEREAS, the TFBM was created under Administrative Order No. 3 issued by President Rodrigo Duterte on June 28, 2017, to ensure collaboration and convergence among national agencies and the local government units;

WHEREAS, the Senate of the Philippines particularly the Senate Special Committee on the Marawi Rehabilitation is expected to expedite the approval of the counterpart measure in the Chamber which is Senate Bill No. 1395 otherwise known as "An Act Providing Monetary Compensation for the Loss or Destruction of Residential, Cultural, Commercial Structures, and Other Properties in the Main Affected Area (MAA) and the Greater Marawi Area (GMA) During the Siege of 2017, Appropriating Funds Therefor and for Other Purposes";

WHEREAS, Senate Bill No. 1395 seeks to provide monetary compensation for the loss or destruction of residential, cultural, commercial facilities, and other properties following the precedent set by R.A. 10368, otherwise known as the "The Human Rights Victims Reparation and Recognition Act of 2013" and cognizant of the principle of just compensation embedded in the social justice provisions of the 1987 Constitution;

WHEREAS, the Compensation Bill for Marawi must be prioritized to provide dignity to the Bangsamoro People affected by the Marawi siege and recognize their hardships and sufferings as a result of the delayed completion of the Marawi Rehabilitation Program:

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority, to request the Senate of the Philippines to prioritize the compensation Bill for Marawi.

RESOLVED FURTHER, to forward this Resolution to the office of the Senate President Vicente "Tito" C. Sotto, for information and appropriate consideration.

ADOPTED, Safar 7, 1443/September 15, 2021.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. ALI PANGALIAN M. BALINDONG
Speaker

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